

Part 2: Drugs and Cosmetics Rules , 1945

Rule 158B

Title: Guidelines for Issue of Licence for Ayurvedic, Siddha or Unani Drugs

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 158B

Plain English Summary:

Rule 158B provides guidelines for issuing a manufacturing licence for Ayurvedic, Siddha and Unani medicines. It classifies medicines into classical medicines, patent or proprietary medicines, health-promoter formulations, beauty-care formulations and medicinal plant extracts. It also specifies when published literature, safety studies and proof of effectiveness are required before a licence can be issued.

The Exact Legal Text:

158(B) Guidelines for issue of licence with respect to Ayurveda, Siddha or Unani drugs.—

I. (A). Ayurveda, Siddha Unani Medicines under section 3(a):— Ayurveda, Siddha or Unani drugs includes all medicines intended for internal or external use for or in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, and manufactured exclusively in accordance with the formulae described in the authoritative books of Ayurvedic, Siddha and Unani Tibb system of medicine, as specified in the First Schedule;

(B). Patent or Proprietary medicine under section 3(h);

(i) In relation to Ayurvedic, Siddha and Unani Tibb system of medicine of all formulations containing only such ingredients mentioned in the formulae described in the authoritative books of Ayurveda, Siddha or Unani Tibb system of medicines specified in the First Schedule, but does not include a medicine which is administered by parenteral route and also a formulation included in the authoritative books as specified in clause (a);

(ii) Balya/Poshak/Muqawi/Unavuporutkal/positive health Promoter formulations having ingredients mentioned in books of First Schedule of the Drugs and Cosmetics Act and recommended for promotional and preventive health;

(iii) Saundarya Prasadak (Husane afza)/Azhagh-sadhan formulation having ingredients mentioned in Books of First Schedule of the Drugs and Cosmetics Act and recommended for oral, skin, hair and body care;

(iv) Aushadh Ghana (Medicinal plant extracts - dry/wet) extract obtained from plant mentioned in books of the First Schedule of the Act including aqueous or hydro-alcoholic extracts.

II. (A) For issue of licence to the medicine with respect to Ayurvedic, Siddha and Unani, the conditions relating to safety study and the experience or evidence of effectiveness shall be such as specified in columns (5) and (6) of the Table given below.

For classical Ayurvedic, Siddha and Unani drugs under Section 3(a), the ingredients and indications shall be as per the authoritative text. Safety study is not required, published literature is required, and separate proof of effectiveness is not required.

For any change in the dosage form of an Ayurvedic, Siddha or Unani drug described under Section 3(a), the ingredients and indications shall be as per the authoritative text. Safety study is not required, published literature is required, and separate proof of effectiveness is not required.

For classical Ayurvedic, Siddha and Unani drugs used for a new indication, the ingredients shall be as per the authoritative text, but the indication is new. Safety study is not required, published literature may be required, and proof of effectiveness is required.

Keywords/Triggers:

Ayurvedic drug licence, Rule 158B, classical Ayurvedic medicine, patent proprietary medicine, safety study, proof of effectiveness, published literature, medicinal plant extract

Rule 159

Title: Cancellation and Suspension of Licences

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 159

Plain English Summary:

Rule 159 allows the Licensing Authority to suspend or cancel the manufacturing licence of an Ayurvedic, Siddha or Unani drug manufacturer. This action may be taken when the manufacturer fails to follow the licence conditions or any provision of the Drugs and Cosmetics

Act and Rules. Before taking action, the manufacturer must be given an opportunity to explain the reason for non-compliance.

The Exact Legal Text:

159. Cancellation and suspension of licences.—

(1) The Licensing Authority may, after giving an opportunity to show cause within a period which shall not be less than fifteen days from the date of receipt of such notice, why such an order should not be passed, by an order in writing stating the reasons therefor, cancel a licence issued under this Part or suspend it for such period as he thinks fit, either wholly or in respect of some of the drugs to which it relates, if in his opinion, the licensee has failed to comply with any of the conditions of the licence or with any provisions of the Act and the rules made thereunder.

(2) A licensee whose licence has been suspended or cancelled may appeal to the State Government within a period of three months from the date of receipt of the order which shall, after considering the appeal, decide the same.

Keywords/Triggers:

Ayurvedic licence cancellation, suspension of drug licence, Rule 159, Licensing Authority, licence conditions, show cause notice, appeal against licence cancellation, Ayurvedic drug compliance

Rule 160

Title: Identification of Raw Materials

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160

Plain English Summary:

Rule 160 requires manufacturers of Ayurvedic, Siddha and Unani medicines to identify and test the raw materials used in the preparation of their medicines. Whenever tests are available to verify the genuineness of the raw materials, those tests must be performed. The manufacturer must also maintain proper records of the tests conducted and the methods used.

The Exact Legal Text:

160. Identification of raw materials.—Raw materials used in the preparation of Ayurvedic (including Siddha) or Unani drugs shall be identified and tested, wherever tests are available for their genuineness, and records of such tests as are carried out for the purpose and the methods thereof shall be maintained.

Keywords/Triggers:

Ayurvedic raw material identification, raw material genuineness testing, Rule 160, Ayurvedic drug quality control, Siddha raw materials, Unani raw materials, testing records, raw material authentication

Rule 160A

Title: Application for Grant of Approval for Testing Ayurvedic, Siddha and Unani Drugs

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160A

Plain English Summary:

Rule 160A explains how an institution or laboratory can apply for approval to test Ayurvedic, Siddha and Unani medicines and their raw materials on behalf of licensed manufacturers. The application must be submitted in Form 47 to the appropriate Licensing Authority along with the prescribed inspection fee and any additional information requested by the approving authority. The rule also explains the additional fee applicable when renewal is requested after the approval has expired.

The Exact Legal Text:

160A. Application for grant of approval for testing Ayurvedic, Siddha and Unani drugs.—Application for grant or renewal of approval for carrying out tests for identity, purity, quality and strength of Ayurvedic, Siddha and Unani drugs or the raw materials used in the manufacture thereof on behalf of licensees for manufacture for sale of the said Ayurvedic, Siddha and Unani drugs, shall be made in Form 47 to the Licensing Authority appointed by the State Government for the purposes of Part XVI, XVII or XVIII of these rules, as the case may be, and referred to as the "approving authority" under this Part and shall be accompanied by an inspection fee of six thousand rupees in respect of the drugs specified in First Schedule to the Act:

Provided that the applicant shall furnish to the approving authority such additional information as may be required by it in connection with the application in Form 47:

Provided further that if the applicant applies for renewal of approval after its expiry but within six months of such expiry, the inspection fee payable shall be six thousand rupees plus an additional inspection fee at the rate of one thousand rupees per month in the case of testing of Ayurvedic, Siddha and Unani drugs specified in First Schedule to the Act.

Explanation.—For the purpose of this Part, the words "Ayurvedic, Siddha and Unani drugs" shall also mean and include the raw materials used in the manufacture of Ayurvedic, Siddha and Unani drugs, as the case may be.

Keywords/Triggers:

Rule 160A, Ayurvedic testing laboratory approval, Form 47, testing raw materials, identity purity quality strength testing, approval renewal, Licensing Authority, Ayurvedic drug inspection fee